

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-11

BAL CONTAINER LINE CO. LIMITED

COMPLAINANT,

v.

SSA MARINE TERMINAL, SSA TERMINALS (PIER A); SSA
CONTAINERS, INC.

RESPONDENTS.

**JOINT MOTION TO FOR EXTENSION OF SCHEDULING ORDER FOR 30 DAYS IN
FURTHERANCE OF RENEWED MEDIATION DISCUSSIONS**

Pursuant to 46 C.F.R. §502.69, BAL Container Line Co. Limited (“Complainant” or “BAL”) and SSA Marine Terminal, SSA Terminals (Pier A), and SSA Containers, Inc. (“Respondents” or “SSA”) (collectively, the “Parties”), by and through their undersigned counsel, hereby move for an amendment extending the current Scheduling Order dated January 29, 2024 for thirty days.

In support of this Joint Motion, the Parties submit the following. The Commission’s regulations require that discovery be completed within 150 days of the service of a respondent’s answer. The Parties have timely served and responded to written discovery requests and made their respective document productions in accordance with the Scheduling Order. The Parties believe they now have sufficient information to attempt to settle this dispute before conducting depositions and have contacted the Consumer Affairs & Dispute Resolute Services (“CADRS”) to schedule a mediation to facilitate this process. The Parties note that pursuant to 46 C.F.R. §502.64(c), a mediation proceeding can stay the time requirements in a matter by order of the Presiding Officer.

The Parties are mindful of the Presiding Officer's current deadline of October 24, 2024. However, both Parties are of the view, based on a review of the documents provided during discovery and discussions had between the parties prior to the start of this proceeding, that there is a realistic possibility of reaching agreement via the use of mediation in the near future. The Parties note that in the event mediation is not successful, additional time will be required to schedule and conduct depositions. As such, the Parties propose to extend the Schedule by 30 days, with an additional 30 days granted before depositions conclude, and each following deadline moving accordingly to accommodate for the change in the discovery schedule.

The Parties therefore propose the following revisions to the Schedule:

<u>Event</u>	<u>Current Deadline</u>	<u>Requested Deadline</u>
Depositions conclude:	May 31, 2024	July 1, 2024
End of Discovery:	June 10, 2023	July 10, 2024
Complainant's brief, proposed findings of fact, and appendix	August 9, 2024	September 9, 2024
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact and appendix	September 9, 2024	October 9, 2024
Complainant's reply brief and responses to proposed findings of fact	September 23, 2024	October 23, 2024

For the reasons set forth above, the Parties respectfully request that its Joint Motion be granted.

Dated: May 6, 2024

Respectfully Submitted,

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